

Vijay Singh v. State of U.P. & 3 Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 (final order disposing of the petition, per Hon'ble Manoj Kumar Gupta, J. and Hon'ble Syed Qamar Hasan Rizvi, J.; substantive orders of 6.1.2023, 17.1.2023 and 18.1.2023 by Hon'ble Manoj Kumar Gupta, J. and Hon'ble Vikram D. Chauhan, J.) · Writ-C No. 38921 of 2022 · **Petition disposed of with no further direction (order dated 15.2.2023). The petitioner challenged a provisional assessment order dated 25.3.2021 (Rs.1,77,589, in a theft-of-electricity case) and a recovery citation dated 6.7.2022 (Rs.4,00,191 plus charges) issued by Dakshinanchal Vidyut Vitran Nigam Ltd. (DVVNL), Sikohabad. It transpired that the recovery certificate had been issued merely on the provisional assessment, without any final assessment order; the respondents admitted it was issued by mistake and had withdrawn it on 2.11.2022. The petitioner, however, was arrested by the Tehsil authorities on 11.11.2022 on that withdrawn certificate and detained in civil lockup, released only after Rs.52,500 was realised from him. The Division Bench (in orders of 6.1.2023, 17.1.2023 and 18.1.2023) held that recovery without a final assessment order was contrary to the Electricity Act and the U.P. Electricity Supply Code, found prima facie gross negligence, and directed an enquiry. The Managing Director's and respondent no.2's affidavits admitted that proper assessment procedure under the Code was not followed, that five officials were prima facie guilty of dereliction (recommended for disciplinary enquiry), that an office memo directing review and withdrawal of similar recovery certificates had been issued, and that Rs.50,000 compensation had been paid to the petitioner (recoverable from the guilty officers). With the recovery withdrawn, compensation paid, the enquiry concluded to the petitioner's satisfaction and a revised estimate for the new connection placed on record, the petition was disposed of as nothing further survived, leaving it open to the petitioner to deposit the amount for release of the connection.**

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HEADNOTE

A recovery citation issued on a provisional assessment order alone, without any final assessment, is contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; and where such an illegal recovery, on a certificate already withdrawn, causes the consumer's wrongful civil imprisonment, the licensee is accountable — liable to compensate the consumer and to proceed against the erring officials. The petitioner challenged a provisional assessment (Rs.1,77,589) in a theft case and a recovery citation for Rs.4,00,191. It emerged that the recovery certificate rested only on the provisional assessment, with no final assessment order; the respondents admitted it was issued by mistake and had withdrawn it on 2.11.2022. Nevertheless the petitioner was arrested by the Tehsil authorities on 11.11.2022 on the withdrawn certificate and detained in civil lockup, released only after Rs.52,500 was extracted from him. The Division Bench held that recovery without a final assessment order was contrary to the Act and the Code, that the proper assessment procedure of the Code had not been followed, and that the non-communication of the withdrawal to the Tehsil authorities had caused the petitioner's civil imprisonment; it found prima facie gross negligence and a casual approach and ordered an enquiry. On the enquiry, five officials were found prima facie guilty of dereliction and recommended for disciplinary proceedings, an office memo was issued reminding officers of the Code's assessment provisions and directing review and withdrawal of similar recovery certificates within two days, and the licensee paid the petitioner Rs.50,000 as compensation, recoverable from the guilty officers. With the recovery withdrawn, compensation paid, the enquiry concluded to the petitioner's satisfaction and a revised estimate for the connection on record, the petition was disposed of as nothing survived.

FACTUAL SUMMARY

The petitioner, Vijay Singh, was aggrieved by a provisional assessment order dated 25.3.2021 by which the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Sikohabad, assessed Rs.1,77,589 as electricity charges in a case of theft of electricity and sought his explanation, and by a recovery citation dated 6.7.2022 for Rs.4,00,191 plus other charges. His case was that no final assessment had been done and that recovery had been initiated straightaway on the provisional assessment, which was illegal, and that the recovery citation (Rs.4,00,191) exceeded the provisional assessment (Rs.1,77,589). The respondents admitted that the recovery was issued on the basis of the provisional assessment order and that the recovery certificate for Rs.4,00,191 had been issued by mistake and withdrawn on 2.11.2022. By a supplementary affidavit the petitioner stated that he had nonetheless been arrested by the Tehsil authorities on 11.11.2022 on the basis of the same recovery certificate and detained in civil lockup, being released only after Rs.52,500 was realised from him. The Division Bench, over successive orders (6.1.2023, 17.1.2023 and 18.1.2023, per Hon'ble Manoj Kumar Gupta, J. and Hon'ble Vikram D. Chauhan, J.), directed the Managing Director of DVVNL to hold an enquiry and to address compensation. The affidavits admitted the fault, that proper assessment procedure under the Supply Code had not been followed, that five officials were prima facie

guilty of dereliction, and disclosed an office memo directing review and withdrawal of similar recovery certificates and the payment of Rs.50,000 compensation to the petitioner (recoverable from the guilty officers). By the final order dated 15.2.2023 (per Hon'ble Manoj Kumar Gupta, J. and Hon'ble Syed Qamar Hasan Rizvi, J.), the petitioner being satisfied and a revised estimate for the connection having been placed on record, the petition was disposed of with no further direction.

REUSABLE CONSTRUCTIONS

1. A recovery citation cannot be issued on the basis of a provisional assessment order alone; without a final assessment order, recovery is contrary to the provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, and the proper assessment procedure laid down in the Code must be followed before recovery. **order of 6.1.2023; order of 15.2.2023**
2. A recovery citation cannot exceed the amount assessed; a citation (here Rs.4,00,191) for more than the provisional assessment (Rs.1,77,589), admitted to have been issued by mistake, is liable to be withdrawn. **order of 6.1.2023**
3. Where an illegal recovery — issued without a final assessment and on a certificate already withdrawn — causes a consumer's wrongful civil imprisonment, the licensee is accountable: it must compensate the consumer (recoverable from the guilty officers) and proceed departmentally against the officials responsible, and a court may direct a systemic review of similar recovery certificates. **order of 6.1.2023; order of 18.1.2023**

HOLDING-UNITS

INTERPLAY · EA2003::126

RATIO

Recovery cannot be initiated on a provisional assessment order without a final assessment; recovery on the provisional order (and for an amount exceeding it) is contrary to the Electricity Act and the Supply Code

QUESTION

Can a recovery citation be issued on the basis of a provisional assessment order alone, without any final assessment order?

HOLDING

No. The recovery certificate was issued merely on the basis of the provisional assessment order dated 25.3.2021 without passing any final assessment order; without a final assessment order the recovery was contrary to the provisions of the Electricity Act and the U.P. Electricity Supply Code, the proper assessment procedure laid down in the Code not having been followed. The illegality was underscored by the recovery citation being for Rs.4,00,191 against a provisional assessment of Rs.1,77,589 — an amount the respondents admitted was issued by mistake and withdrew on 2.11.2022. **order of 6.1.2023; order of 15.2.2023**

EVIDENCE “Without there being any final assessment order, the recovery initiated against the petitioner was contrary to the provisions of the Electricity Act and the U.P. Electricity Supply Code” **order of 6.1.2023**

EVIDENCE “the impugned recovery certificate was issued merely on basis of provisional assessment order dated 25.03.2021 without passing any order of final assessment” **order of 15.2.2023**

EVIDENCE “the provisional assessment was for Rs.1,77,589/-, whereas the recovery citation is for a sum of Rs.4,00,191/-” **order of 6.1.2023**

FLAG Theft-of-electricity assessment; order-sheet with several dated orders and no numbered paragraphs (pin_basis=date). No specific Supply Code clause number is cited — the Court referred generally to the assessment procedure of the Code — and the corpus keys the final-assessment precondition to EA2003::126.

INTERPLAY · OFFTOPIC::compensation-for-illegal-recovery-civil-imprisonment

RATIO

Illegal recovery without a final assessment, on a withdrawn certificate, causing the consumer's wrongful civil imprisonment, attracts compensation to the consumer and disciplinary accountability of the erring officials

QUESTION

What are the consequences where a consumer is subjected to civil imprisonment on a recovery certificate issued without a final assessment and already withdrawn?

HOLDING

The facts disclosed gross negligence and a casual approach on the part of the respondents. The recovery certificate having been withdrawn on 2.11.2022, its non-communication to the Tehsil authorities caused the petitioner to be arrested on 11.11.2022 and detained in civil lockup, released only after Rs.52,500 was realised from him. On the Court's directions the Managing Director held an enquiry: proper assessment procedure under the Supply Code had not been followed, five officials were found prima facie guilty of dereliction and were recommended for disciplinary enquiry, an office memo was issued reminding officers of the assessment provisions and directing review and withdrawal of similar recovery certificates within two days, and the licensee paid the petitioner Rs.50,000 as compensation, recoverable from the guilty officers. With the recovery withdrawn, compensation paid, the enquiry concluded to the petitioner's satisfaction and a revised estimate for the connection placed on record, the petition was disposed of as nothing further survived. [order of 6.1.2023](#); [order of 17.1.2023](#); [order of 15.2.2023](#)

EVIDENCE “The facts noted above prima facie shows gross negligence and a casual approach on part of the respondents” [order of 6.1.2023](#)

EVIDENCE “As many as five officials have been found prima facie guilty of dereliction of duties” [order of 17.1.2023](#)

EVIDENCE “the respondents had paid to him a compensation of Rs. 50,000/-, which fact is admitted to learned counsel for the petitioner” [order of 15.2.2023](#)

FLAG Remedial/accountability outcome secured through the respondents' own orders (compensation and disciplinary action) rather than a contested judicial award; the petition was disposed of as nothing survived.

PRINCIPLE TAGS

final-s126-assessment-mandatory-precondition-to-recovery-citation The recovery citation was issued on the provisional assessment of 25.3.2021 without any final assessment order, and was therefore contrary to the Act and the Code. [order of 6.1.2023](#); [order of 15.2.2023](#)

demand-notice-on-provisional-assessment-is-illegal Recovery proceedings founded on the provisional assessment order alone, without a final assessment, were illegal; the recovery for Rs.4,00,191 (exceeding the Rs.1,77,589 provisional assessment) was admittedly issued by mistake and withdrawn. [order of 6.1.2023](#)

compensation-for-illegal-recovery-and-wrongful-civil-imprisonment The consumer, wrongfully detained in civil lockup on a withdrawn recovery certificate issued without a final assessment, was paid Rs.50,000 compensation recoverable from the guilty officers, with disciplinary action against five officials and a systemic review of similar certificates directed. [order of 6.1.2023](#); [order of 18.1.2023](#); [order of 15.2.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE CORRECTNESS OF THE PROVISIONAL ASSESSMENT OF RS.1,77,589 FOR THEFT OF ELECTRICITY AND THE PETITIONER'S CIVIL LIABILITY

Not adjudicated; the recovery was withdrawn for want of a final assessment and the petition was disposed of as nothing further survived, leaving assessment to be done afresh in accordance with proper procedure if pursued. [order of 15.2.2023](#)

NOT DECIDED — RELEASE OF THE NEW ELECTRICITY CONNECTION APPLIED FOR ON 21.11.2020

Left open to the petitioner to deposit the revised estimate placed on record by the respondents, whereupon the connection would be released; no further direction was issued. [order of 15.2.2023](#)

RELATED CASES — SEE ALSO

SCJ-898 — A final Section 126(3) assessment is a mandatory precondition to a recovery citation — the core proposition applied here.

SCJ-895 — Final assessment mandatory before recovery (Devi Lal @ Tutti Lal) — recovery on a provisional assessment struck down.

SCJ-176 — Recovery founded on a provisional assessment without a final assessment order held illegal (Rakesh).

SCJ-145 — Final-assessment precondition to recovery (Vinod Kumar Agarwal) — cognate sibling.

SCJ-1982 — Recent sibling holding a recovery citation without a final assessment unsustainable (Ramanuj Tripathi).

